

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1290

By: Hays

AS INTRODUCED

An Act relating to property; limiting total land owned or encumbered in each county by certain parties; providing for calculation of ownership; prohibiting the recording of instruments that would violate limit; providing exceptions; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1501 of Title 60, unless there is created a duplication in numbering, reads as follows:

A. The State of Oklahoma shall limit the amount of land owned by the State of Oklahoma, state agencies, and the federal government, and shall limit the amount of land encumbered by any easements, including, but not limited to, conservation easements to no more than ten percent (10%) of the total land of each county in the state.

B. The percentage of land owned by the parties mentioned in subsection A of this section shall be calculated by the county clerk of each county in this state. County clerks shall refuse to record

1 any instrument which would cause more than ten percent (10%) of the
2 total land in the county to be owned by or encumbered by parties
3 mentioned in subsection A of this section.

4 C. The following are exempt from subsection A of this act:

5 1. Federal military bases;

6 2. Flood control lakes or U.S. Army Corps of Engineers
7 property; and

8 3. Temporary county real estate holdings that were acquired by
9 the county for nonpayment of taxes.

10 SECTION 2. This act shall become effective November 1, 2025.

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